

Satya Prakash v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 September 2013 · Writ-C No. 49177 of 2013 · **Writ disposed of; petitioner relegated to clause 6.5 complaint.**

HEADNOTE

Correction of an electricity bill is to be sought by complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ of mandamus directing the licensee to correct the bill will not issue.

FACTUAL SUMMARY

Satya Prakash petitioned the Allahabad High Court for a mandamus directing respondent no. 2 to correct his electricity bill. He annexed a recovery certificate issued by the Executive Engineer to the Collector for Rs. 96,883. After hearing counsel for the petitioner and for respondent no. 2, the Division Bench declined to examine the bill on merits and disposed of the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

complaint for correction of electricity bill

HOLDING

A consumer who seeks correction of an electricity bill must file an appropriate complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005; the High Court will not issue a writ of mandamus directing the licensee to correct the bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Correction of an electricity bill is to be sought by complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ of mandamus directing the licensee to correct the bill will not issue. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE RECOVERY OF RS. 96,883

Court relegated the petitioner to a clause 6.5 complaint without examining the bill. ¶ 1